learned Senior Counsel, with Meenakshi Lekhi representing the respondents.

I am not delving into the merits of the case except to say that the Union of India was ill-advised to keep fighting a case which, in my opinion, had no *locus standi*. In the twenty-first century, to argue that women are the 'fairer sex' and need to be handled with kid gloves was just not aligned with today's time and age. The arguments offered in Court smacked of a paternalistic and feudal attitude. Statements like 'men will not accept orders from women', or that 'safety of women cannot be guaranteed in an all-male environment', were not only misleading but an insult to the character qualities of our men. If we, the Indian Army, could not guarantee the safety and honour of our women, how were we going to guarantee the safety and honour of 'Mother India'? Even while accepting some of the suggestions of the Court towards a speedy resolution of the case, it would be done reluctantly and by inserting some other restrictive clause, some *ghundi* (caveat), that would lead to further litigation.

The challenge was how to implement the orders of the Supreme Court. So many changes had taken place in the intervening years that it was difficult to make any policy (towards implementation of the judgment) that would satisfy all conditions and all affected women officers. I had met Meenakshi Lekhi as GOC Delhi Area, when Ms Lekhi had called on me in my office.[9] Over a cup of tea, we exchanged views on several issues, including this case. With that meeting at the back of my mind, I thought that consulting her over the way forward would be the most practical option. Once the dust had settled down and we had time to analyse the judgment in detail, I asked my MS, Lt Gen Rajeev Sirohi, to schedule a meeting, to which Ms Lekhi readily agreed. We discussed the manner in which we should go forward and how to avoid likely pitfalls.

Copyright @ Penguin Random House India
Not for circulation